

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION FOR PROTECTIVE ORDER BY WILLIAM CHAPMAN

Tentative Ruling: CCP § 2025.420(b) provides that “for good cause shown,” the court may issue a protective order “to protect any party ... from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” The burden is on the moving party to establish “good cause” for the requested relief. (*See Emerson Elec. Co. v. Superior Court* (1976) 16 Cal.4th 1101, 1110; *Nativi v. Deutsche Bank Nat’l Trust Co.* (2014) 223 Cal.App.4th 261, 318.)

Based on the deposition transcript, Chapman is 88 years old, hard of hearing, and uses hearing aids. (William Chapman’s Deposition Transcript, 7:14-19; 22:22-24.) This was also his first deposition. (*Id.* at 6:17-21.) The deposition was conducted via Zoom. (*Id.* at 6:22-23.) While closed captioning was provided to assist Chapman in answering questions, Chapman had a hard time hearing what was said, had a difficult time keeping up with the closed captioning, and appeared confused by the objections. (*Id.* at 6:9-20, 9:10-17; 12:2-20; 13:3-22; 15:7-20; 17:6-20; 18:4-10; 20:7-24; 23:17-25; 24:1.) Plaintiff’s counsel struggled to get Chapman to respond to fairly basic questions regarding receiving the complaint, a voicemail to Plaintiff, and the identity of the other defendants. (*Id.*) Using Zoom can be difficult for those without any hearing issues, due to background noises from multiple users and lag time. Holding a deposition in person for someone who is hard of hearing and has hearing aids appears reasonable. Based on this evidence, there is good cause to grant the request that Chapman’s deposition go forward in person with the benefit of closed captioning to prevent annoyance and embarrassment to Chapman.

Plaintiff argues that Chapman failed to sufficiently meet and confer regarding this matter. CCP § 2025.420(a) requires the parties to meet and confer before a motion for protective order is filed. However, based on the deposition transcript and the emails sent, Chapman’s counsel attempted to discuss with Plaintiff’s counsel the need for an alternative method to conduct Chapman’s deposition, including the request that Plaintiff’s counsel agreed to hold the deposition in person instead of via zoom. (William Chapman’s Deposition Transcript, 21:1-13; 24:13-25; 26:3-17; 27:7-14; Exhibits H and J to Charmaine V. Jackson’s Declaration.) These communications are sufficient to meet Chapman’s meet and confer requirement.

Plaintiff’s counsel also takes issue with the fact that Chapman’s counsel unilaterally determined that Chapman’s deposition should end during his first session. However, she points to no authority that this fact has any impact on Chapman’s motion for protective order.

Plaintiff seeks sanctions under CCP § 2025.420(h). Chapman does not seek sanctions. Under CCP § 2025.420(h), the court shall impose monetary sanctions against any party who unsuccessfully makes or opposes a motion for protective order, unless it finds that imposing sanctions would be unjust or the party acted with substantial justification. Sanctions are not proper under this code section because Plaintiffs were not successful in their opposition. They also seek sanctions under CCP § 2023.030 for misuse of discovery. CCP § 2023.030(a) gives the court discretion to impose sanctions for the misuse of the discovery process. While the Court ordered Chapman’s deposition, due to Chapman’s struggles at deposition, Chapman and Chapman’s counsel’s conduct are not improper. Counsel attempted to resolve this issue with Plaintiffs.

Defendant Chapman's Motion for a Protective Order GRANTED.

The deposition of William Chapman will proceed in person, with the assistance of closed captioning and Mr. Chapman will use functioning hearing aids.

Plaintiff's request for sanctions DENIED.

Case Management Conference continued to 11.20.26. Counsel ordered to file new and updated Case Management Statements regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Failure to do so will result in sanctions. Updated Case Management Statements must be filed no later than 10 days before the Case Management Conference. All Case Management Statements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

Additionally, the court is ordering that prior to filing any further discovery motions, the party must request an informal discovery conference with the court to discuss the discovery issues. No future discovery motions shall be heard without an IDC conducted first.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	PLAINTIFF WENDY ALEJANDRA CORTEZ'S MOTION FOR TERMINATING SANCTIONS, OR IN THE ALTERNATIVE, ISSUE AND EVIDENTIARY SANCTIONS, AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling: A court, after notice and an opportunity for a hearing, may impose terminating, issue, or evidentiary sanctions for misuse of the discovery process. (CCP § 2023.030.) Terminating sanctions results in the striking of a pleading or parts of the pleading; an order staying further proceedings until the discovery order has been obeyed; order dismissing an action; or an order rendering judgment by default against the drafting party. (*Id.* at (d).) “An issue sanction is an order that designated facts are deemed established in favor of the party adversely affected by the misuse of the discovery process, or an order prohibiting the sanctioned party from supporting or opposing designated claims or defenses. An evidence sanction is an order prohibiting designated matters from being introduced in evidence. (*New Albertson, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1422.)

Typically, terminating, issue, and evidentiary sanctions under CCP § 2023.030 only occur when there has been a violation of a court order. “Section 2023.030 authorizes a court to impose the specified types of sanctions, ‘[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title.’ This means that the statutes governing the particular discovery methods limit the permissible sanctions to those sanctions provided under the applicable governing statutes.” (*New Albertsons, Inc., supra*, 168 Cal.App.4th at 1422.) The Discovery Act statutes “state that